Raman Bhatia vs State (Govt Of Nct Of Delhi) & Anr on 23 December, 2024

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 4693/2024

RAMAN BHATIA
Through:

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STATE (GOVT OF NCT OF DELHI) & ANR.
Through: Mr. Tarang Srivas
State.
Mr. Vicky Kumar
Kumar, Advocate
CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHAN
ORDER

% 23.12.2024 By way of the present petition filed under section 482 read with section 528 of the Bharatiya Nagarik Suraksha Sanhita 2023, the petitioner seeks anticipatory bail in case FIR No.805/2024 dated 08.11.2024 registered under sections 318(4)/338/336(3)/340(2)/61(2) of the Bharatiya Nyaya Sanhita, 2023 at P.S.: Shahbad Dairy, Delhi.

2. Dr. Alok, learned counsel appearing for the petitioner submits, that the essential allegation against the petitioner in the subject FIR is that he agreed to sell the property bearing No. G-4/144, Sector-11, Rohini, Delhi ad-measuring about 31.69 sq. mts. to the complainant Dilip Kumar vide Agreement to Sell dated 08.06.2024, based on forged and fabricated documents.

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3. Counsel submits, that the petitioner had himself purchased the subject property vide Sale Deed dated 26.10.2023 from one Dheeraj Saini, which sale deed was duly registered with the concerned Sub-Registrar of Assurances, New Delhi on 30.10.2023, for a consideration of about Rs. 70 lacs, of which Rs. 42 lacs was funded by him through a bank loan.

4. Counsel further submits that before sanctioning the loan, the Indian Overseas Bank ('IOB') had undertaken a full due diligence exercise in relation to the subject property; the title of the property was verified by the bank lawyers; and a title report dated 17.10.2023 was submitted by the lawyers, which narrated the chain of title of the subject property, as detailed therein.

5. Under cover of index dated 23.12.2024, counsel for the petitioner has handed-up copies of certain documents, including Sale Deed dated 26.10.2023, a non-encumbrance/verification report dated 17.10.2023, a bank loan sanction letter, as well as an accounts statement for the housing loan, in support of his submissions, which are taken on record.

6. Counsel also handed-up a certificate dated 23.12.2024 issued by the IOB, confirming that the housing loan account in the petitioner's name (alongwith his wife's name) is "regular" and that there is no payment overdue in the above-mentioned account. Certificate dated 23.12.2024 is also taken on record.

7. Counsel accordingly submits, that not only was the petitioner holding the subject property under a validly executed and registered sale-deed, The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/01/2025 at 00:18:31 he has also been servicing the bank loan, from the date of its sanction last year until December 2024.

8. Counsel submits, that in the meantime the petitioner had undertaken some construction on the subject property; and subsequently he entered into an agreement to sell the subject property to the complainant, under which agreement the complainant has so far paid Rs. 30 lacs to the petitioner.

9. It is argued therefore, that if there is any defect in the title of the subject property, the petitioner himself is also a victim at the hands of the other co-accused persons; but the petitioner has certainly not perpetrated any offence of cheating, forgery, fabrication or fraud against the complainant.

10. Furthermore, on instructions, learned counsel for the petitioner submits, that to show his bona-fides the petitioner is ready and willing to refund the entire sum of Rs. 30 lacs received under the agreement to sell to the complainant.

11. Issue notice.

12. Mr. Tarang Srivastva, learned APP appears on behalf of the State on advance copy; accepts notice; and seeks time to file status report.

13. Let status report be filed at least 03 days before the next date; with copy to the opposing counsel.

14. Mr. Srivastva submits, that the petitioner was well-aware that the sale-deed executed in his favour did not convey valid title to him, inasmuch as the antecedent title documents were forged and fabricated. Yet, it is argued, the petitioner entered into the agreement to sell with the complainant, in an effort to cheat the complainant.

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15. Learned APP submits, that the petitioner's custodial interrogation is required to unearth the entire chain of title of the subject property; and to unravel the conspiracy to commit offences against the complainant.

16. Mr. Vicky Kumar, learned counsel is present on behalf of the complainant. He submits that the complainant has been defrauded of the sum of Rs.30 lacs in relation to the subject property, to which the petitioner never held any valid title.

17. Upon a prima-facie view of the matter, it is directed that subject to the petitioner depositing in this court the sum of Rs. 30 lacs in the name of the Registrar General, within 02 weeks; and also subject to the petitioner joining investigation as and when called by the Investigating Officer ('I.O.') by written notice duly served upon him, no coercive steps shall be taken against him, till the next date of hearing before this court.

18. The amount deposited shall be retained by the Registrar General in a fixed deposit account in a nationalized bank, initially for a period of 06 months; and to be renewed from time-to-time for the same period, without awaiting any fresh orders from this court.

19. As requested by the I.O., the petitioner is directed to present himself before the I.O. for investigation at 05:00 p.m. on 24th December 2024 at P.S.: Shahbad Dairy, Delhi.

20. Re-notify on 24th February 2025.

ANUP JAIRAM BHAMBHANI, J DECEMBER 23, 2024 V.Rawat The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/01/2025 at 00:18:32